

Appointment
of officers by
local authori-
ties.

9. A local authority may, with the consent of the Department, appoint one or more officers for the purpose of the execution of this Act having such qualifications and upon such terms as to remuneration and otherwise as the Department approve.

Local authori-
ties and ex-
penses.

10.—(1) The local authority for the purposes of this Act shall—

(a) as respects the rural districts of any administrative county, be the county council;

(b) as respects an urban district or county borough, be the council of the district or borough.

(2) The expenses incurred by or on behalf of a local authority in the execution of this Act, including compensation, shall be defrayed in the case of the council of a county other than a county borough out of the funds at the disposal of the council for the purposes of agriculture and other rural industries, and, in the case of the council of an urban district or county borough, out of any rate or fund applicable to the purposes of the Public Health (Ireland) Acts, 1878 to 1907, as if incurred for those purposes.

Exercise of
powers of county
councils by com-
mittees for the
purposes of Part I.
of 62 & 63 Vict.
c. 50.

11. The powers and duties of the council of every county other than a county borough under this Act shall be exercised and discharged by and through the committee appointed by the council for the purposes of Part I. of the Agriculture and Technical Instruction (Ireland) Act, 1899.

Prosecution of
offences.

12.—(1) Any offence under this Act may be prosecuted, and any penalty recoverable under this Act may be recovered in a summary manner.

(2) A prosecution for an offence under this Act may be instituted, and a penalty recoverable under this Act may be recovered, either by the Department or the local authority.

(3) All penalties recovered under this Act shall, notwithstanding any provision in any other Act, be paid to the body by whom the prosecution is instituted under this section, and shall be applied in aid of the expenses of that body in the execution of this Act.

Extent, cita-
tion, and com-
mencement.

13. This Act shall apply to Ireland only, and may be cited as the Bee Pest Prevention (Ireland) Act, 1908, and shall come into operation on the first day of January one thousand nine hundred and nine.

CHAPTER 35.

An Act to confer upon County Councils in Ireland the power to alter the Polling Districts and alter the method of compiling Lists of Voters.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

1. Subject to the provisions of this Act, any county council in Ireland may alter any Parliamentary polling districts wholly included within its administrative county in such manner as to secure that each Parliamentary polling district constituted under this Act shall consist wholly of one or more district electoral divisions, and may appoint new polling places for such districts in addition to or in substitution for existing polling places: Provided that nothing in this Act, nor anything done in pursuance of this Act, shall alter the limits of any Parliamentary borough or Parliamentary county or Parliamentary division thereof.

Alteration of
polling dis-
tricts.

2.—(1) A county council that desires to exercise any of its powers under section one of this Act shall prepare a scheme in the prescribed manner, setting forth the alterations proposed to be made in respect of the existing polling districts or polling places, and after publication of the prescribed notices shall submit the scheme to the Local Government Board.

Procedure.

(2) Any person dissatisfied with the scheme may appeal to the Local Government Board against the scheme within the prescribed time and in the prescribed manner.

(3) The Local Government Board, after consideration of the scheme and any representations made by way of appeal or otherwise, may, if they think fit, make an order confirming the scheme either absolutely or with such variations or modifications as they think expedient, and the scheme shall take effect accordingly as from the date fixed by the Order.

(4) No scheme shall be of any force or validity unless and until it is confirmed by an Order of the Local Government Board under this section.

(5) The Lord Lieutenant in Council may make rules for adapting to the provisions of this Act the enactments relating to the registration of Parliamentary electors in Ireland, and the precepts and forms contained in or used under those enactments.

3. Any county council in Ireland may, with the sanction of the Local Government Board, arrange to have the register of voters, or any part of the register, prepared alphabetically in townlands or, as regards urban districts, in streets.

Alteration in
method of
compiling
register.

4.—(1) The Local Government Board may make general rules for carrying this Act into effect.

Rules and
inquiries.

(2) The Local Government Board may, for the purpose of carrying out any of their duties under this Act, cause to be made a local inquiry, and the provisions of article thirty-two of the schedule of the Local Government (Application of Enactments) Order, 1898, shall apply to every such inquiry in like manner as it applies to local inquiries held for the purposes of the Local Government (Ireland) Act, 1898. *

(3) All rules under this section shall be published in the Dublin Gazette and laid before Parliament.

61 & 62 Vict.
c. 37.

Definitions.

5. In this Act, unless the context otherwise requires—

The expression “Local Government Board” means the Local Government Board for Ireland;

The expression “prescribed” means prescribed by the Local Government Board;

The expression “county council” shall not include the council of a county borough.

Short title.

6. This Act shall apply to Ireland only and may be cited as the Polling Districts and Registration of Voters (Ireland) Act, 1908.

CHAPTER 36.

An Act to consolidate the enactments with respect to Small Holdings and Allotments in England and Wales.

[1st August 1908.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

SMALL HOLDINGS.

Provision of Small Holdings.

Powers and duties of providing small holdings.

1. A county council may if they are of opinion that there is such a demand for small holdings in their county as justifies them in putting into operation this Part of this Act, and shall, if so required by a scheme under this Act, provide small holdings for persons who desire to buy or lease and will themselves cultivate the holdings.

Schemes as to the provision of Small Holdings.

Appointment of Small Holdings Commissioners, &c.

2.—(1) With a view to extending the provision of small holdings, there shall continue to be Small Holdings Commissioners (herein-after referred to as “the Commissioners”), and the Board of Agriculture and Fisheries (herein-after referred to as “the Board”) may appoint two or more persons possessed of a knowledge of agriculture to be Commissioners and may appoint such other officers for the purposes of this Act as the Board may, with the consent of the Treasury, determine.

(2) There shall continue to be paid out of money provided by Parliament to the Commissioners and officers so appointed such salaries or remuneration as the Treasury may from time to time determine; and all expenses incurred by those Commissioners and officers in the execution of their duties under this Act, to